

JUDGMENT SHEET
IN THE LAHORE HIGH COURT
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT
JUDGMENT

W.P.No.3854/2022

Muhammad Jahangir **VS.** Member (Judicial-III),
Board of Revenue etc.

Date of hearing	23.10.2025
Petitioners by	Mr. Tariq Mehmood Dogar, Advocate for the petitioners in all writ petitions except W.P.No.2803/22 Ch. Muhammad Riaz Jahanian, Advocate for the petitioner in W.P.No.2803/2022
Respondents by	Kanwar Sajid Ali, Assistant Advocate General alongwith Waseem Sajjad, Naib Tehsildar

Ch. Muhammad Iqbal, J:- Through this single judgment, I intend to decide the titled Writ Petition [No.3854/2022] as well as following Writ Petitions as common questions of law and facts are involved in these cases:

Sr. No.	W.P.No.	Sr. No.	W.P.No.
1	2803/2022	9	4121/2022
2	3839/2022	10	5163/2022
3	5164/2022	11	6314/2022
4	9079/2022	12	4120/2022
5	4027/2022	13	4122/2022
6	3855/2022	14	4029/2022
7	4119/2022	15	4123/2022
8	4026/2022	-	-

2. As the facts of these cases are similar in nature as such for reference only the facts of captioned petition are being discussed. Brief facts of this case as contended by learned counsel for the petitioner are that the petitioner is permanent Lambardar of Chak No.224/EB, Tehsil & District Vehari. That grandfather of the petitioner and thereafter his father were also Lambardar of the said Chak. That the petitioner was appointed as permanent Lambardar on 25.03.2009 and land measuring 100 Kanal situated in Chak No.224/EB, Tehsil & District Vehari under Pedigree Livestock Scheme was leased out to the petitioner. The father of the petitioner during holding post of Lambardar, filed an application for grant of proprietary rights of the land in question in terms of the policy of the Board of Revenue, Punjab. The said application remained unattended and undecided. The petitioner after his appointment as Lambardari also filed an application on 11.02.2019 for grant of proprietary rights of land in question under the Lambardari Grant which was dismissed by the Additional Deputy Commissioner (Revenue), Vehari vide order dated 27.01.2022. Feeling aggrieved, the petitioner filed an appeal which was dismissed by the Commissioner, Multan Division vide order dated 17.02.2020. The petitioner challenged the aforesaid order in revision petition (R.O.R) which was dismissed by the Member, Board of Revenue, Punjab vide consolidated order dated 27.01.2022. Hence, this petition.

3. Arguments heard. Record perused.

4. The main controversy revolves around the grant of proprietary rights of the State land under the Lumbardari grant. The Colonies Department, Government of the Punjab through the Policy Notification No.3910-76/2686-CV dated 13.07.1976 decided to dispose of Lambardari Grants in Canal Colonies by granting proprietary rights to permanent Lambardars. As per the Clause 11 of the said Policy/Scheme, option was given to the

concerned Lambardar to purchase the land. For ready reference, Clause 11 of the aforesaid policy is reproduced as under:

“11. The Lambardar/tenant shall exercise option for the purchase of land under Lambardari grant within two months of the issue of this scheme subject to the price approved by the Government.”

Subsequently, vide letter No.5515-77/3314-CV dated 09.10.1977, the Board of Revenue, Punjab extended two months' time for exercising option to purchase the land. For ready reference, notification dated 09.10.1977 is reproduced as under:

“No.5515-77/3314-CV,
Board of Revenue, Punjab,
Lahore dated the 09th October: 1977.

From

The Deputy Secretary (Colonies)
Board of Revenue, Punjab.

To

All the Deputy Commissioners, in the Punjab.

Subject:

**Disposal of Lambardari Grants in Canal Colonies-
Grant of proprietary rights to Lambardars in
Canal Colonies.**

Reference:

Colonies Department memorandum No. 3910-76/2686-CV, dated 13th July, 1976.

Memorandum.

The Board of Revenue has decided that the extension of two months for exercising option to acquire proprietary rights to Lambardars may be allowed from the date of issue of this communication. This should be notified to the Lambardars.

2. To the Deputy Commissioner, Sahiwal only.

(This also disposes of your memo: No.5873-C/II-C/Cly, dated 09.08.1977).

Sd/-

Deputy Secretary (Colonies)
Board of Revenue, Punjab.”

As per policy/notification No.4428-78/3954-CV dated 13.12.1978, it was clarified that the policy dated 13.07.1976 is applicable only to those Lambardars who were allotted land under old Lambardari Grant i.e. before 15.03.1948. For reference, the notification dated 13.12.1978 is reproduced as under:

“No 4428-78/3954-CV,
Board of Revenue, Punjab,
Lahore dated the 13th December: 1978.

From

The Deputy Secretary (Colonies),
Board of Revenue, Punjab

To

The Commissioner,
Sargodha Division, Sargodha.

Subject: **Disposal of Lambardari Grants in Canal Colonies-Grant of proprietary rights to Lambardars.**

Reference: Your endst: No.P-I-III/7091/CA, dated the
14th November: 1978, on the above subject.

Memorandum.

In order to remove the ambiguity, necessary clarification in respect of this office memo: No.3910-76/2686-CV. dated 13.07.1976 is as under:-

1. The memo under reference is applicable only to those Lambardars who were allotted Land under old Lambardari grant i.e. before 15.03.1948.
2. The price to be reckoned is average price of last 12 months for the period from 13.07.1975 to 13.07.1976.
3. The cases of all eligible Lambardars may be referred to the Board of Revenue for approval of sale price either collectively or individually as the case may be as per proforma prescribed in Board's memo No.7670-76/1539-CV, dated the 6th June, 1977.

Sd/-

Deputy Secretary (Colonies)
Board of Revenue, Punjab.”

Later on, through policy No.4218-79/413-CV dated 30.01.1980, it was further clarified that the Lambardars who were hereditary and have been promised proprietary rights in terms of the Government of the Punjab, Resettlement and Colony Department Memo No.3489-C dated 07.08.1951 and are also still in possession of land allotted to them under old Lambardari Scheme existing before 15.12.1948, any other category of Lambardar will not be entitled to get benefit under these instructions. The notification dated 30.01.1980 is cited hereunder for reference:

“No 4218-79/413-CV,
Board of Revenue, Punjab,
Lahore dated the 30th January: 1980.

From

The Secretary (Colonies),
Board of Revenue, Punjab.

To

All Deputy Commissioners and Settlement
Officers, in the Punjab.

Subject **Grant of Disposal of Lambardari Grant in Canal Colonies proprietary rights to Lambardars in the Canal Colonies.**

Reference In continuation of Government of the Punjab Colonies Department's memo: No. 3910-76/2686-CV, dated the 13th July, 1976.

Mr.A.K.Khalid, Member (Colonies). Board of Revenue, Punjab.

Memorandum.

It is to clarify that the decision/ instructions contained in Government of the Punjab Colonies Department's memorandum under reference will apply only to those Lambardars who are hereditary and have been promised proprietary rights in terms of the Government of the Punjab, Resettlement and Colonies Department's memorandum No. 3489-C, dated 7th August, 1951, and are also still in possession of the land allotted to them under the old Lambardari Scheme existing since before 15.03.1948. Any other category of Lambardars will not be entitled to benefit under these instructions

Sd/- Secretary (Colonies)
Board of Revenue, Punjab.”

Later on, as per the notification No.81-2006/51-C(V) dated 17.01.2006, the Colonies Department, Government of the Punjab issued notification under Section 10(2) of the Colonization of Government Lands (Punjab) Act, 1912, in supersession of all the previous instructions and decided that as per Clause 24 of the Statement of Conditions, no proprietary rights will be given to Lambardars. For ready reference, relevant portion of notification dated 17.01.2006 is reproduced as under:

“24. SPECIAL PROVISIONS

- (i) No proprietary rights shall be granted to the “Lambardars” in respect of the land they hold on lease because of being holders of the office of the “Lambardar”.
- (ii) The present incumbents of the office of “Lambardar” in Districts, to which the Act applies shall execute of fresh lease deed with the District Collector (on a judicial paper) for their tenancies.”

In all these petitions, the petitioners do not fulfill the criteria as prescribed in the notifications reproduced above. Moreover, in this case the petitioner filed application in February, 2019

whereas the Government of the Punjab has decided in 2006 that no proprietary rights will be granted to Lambardars.

5. The petitioners did not submit any authentic, credible and unimpeachable evidence that right for grant of proprietary rights was invoked in terms of notifications dated 13.07.1976 and dated 09.10.1977 within stipulated period by their predecessors/Lambardars. In all these petitions, photocopies of some handwritten applications have been prepared to show that such applications were filed during the target dates but no record of the respondent-authorities have been submitted in this regard. Further, if the petitioners or their predecessors have submitted applications in the year 1976, then why they remained mum for a long period stretching more than four decades and then agitated the matter in 2019 which shows that the story of filing applications has been concocted by the petitioners as such they have not come to the Court with clean hands which disentitles them from any discretionary relief. Reliance is placed on cases cited as Mst. Shahida & Another Vs. Board of Intermediate & Secondary Education, Larkana through Chairman, at Larkana & 5 Others (PLD 2001 SC 26) and Sayed Abbas Taqi Mehdi Vs. Mst. Sayeda Sabahat Batool & Others (2010 SCMR 1840).

6. Further, the petitioners were granted land under the Policy/Notification dated 17.01.2006 and they have submitted undertaking (affidavits) to the respondent-authorities that they would not claim any proprietary rights of the land leased out to them under Lambardari Grant as such the petitioners are debarred to wriggle out from the same. Reliance in this regard is placed on the cases titled as Khalid Rashid Vs. Kamran Lashari, Chairman, C.D.A, Islamabad and others (2010 SCMR 594) and Sajid Mehmood Vs. Mst. Shazia Azad & Others (2023 SCMR 153).

7. Even otherwise, the revenue hierarchy has given concurrent findings of facts against the petitioners and the

conclusions drawn by the revenue hierarchy are based on cogent reasons, as such same do not call for any interference by this Court. Reliance is placed on the cases titled as Muhammad Husain Munir & Others Vs Sikandar & Others (PLD 1974 SC 139), Muhammad Sher & Another Vs Mian Kamal Shah & 11 Others (1987 CLC 47) Muhammad Akram Vs Member Board of Revenue, etc. (PLJ 2014 Lahore 484) & Muhammad Akram Vs. Member, Board of Revenue (Judicial-VII) & 8 Others (2014 MLD 870).

8. Learned counsels for the petitioners has not pointed out any illegality or material irregularity in the impugned orders passed by the revenue hierarchy and has also not identified any jurisdictional defect calling for interference by this Court.

9. Resultantly, all these writ petitions being devoid of any merit are hereby **dismissed**.

(Ch. Muhammad Iqbal)
Judge

Approved for reporting.

Judge

Abdul Hafeez